



LIN 25/001

Migration (Access to Movement Records) Instrument 2025

I, Belinda Conn, delegate of the Minister, make the following instrument.

Dated 10 September 2025

Belinda Conn
Commander
Border Capability Delivery Branch
Australian Border Force

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1 Name

This instrument is the *Migration (Access to Movement Records) Instrument 2025*.

2 Commencement

This instrument commences on the day after it is registered.

3 Authority

This instrument is made under the following provisions of the *Migration Regulations 1994*:

- (a) subregulation 3.10A(1);
- (b) subregulation 3.10A(2).

4 Definitions

- (1) In this instrument:

Act means the *Migration Act 1958*.

Regulations means the *Migration Regulations 1994*.

security vetting includes pre-employment screening and ongoing assessment of the eligibility and suitability of a person to be employed by an agency.

- (2) In this instrument, an APS level in the following table is an abbreviation of the approved classification of an APS employee under the *Public Service Classification Rules 2000*.

APS level	Approved classification
APS 1	APS Level 1
APS 2	APS Level 2
APS 3	APS Level 3
APS 4	APS Level 4
APS 5	APS Level 5
APS 6	APS Level 6
EL 1	Executive Level 1
EL 2	Executive Level 2
SES 1	Senior Executive Service Band 1
SES 2	Senior Executive Service Band 2

5 Schedules

Each instrument that is specified in a Schedule to this instrument is amended or repealed as set out in the applicable items in the Schedule concerned, and any other item in a Schedule to this instrument has effect according to its terms.

6 Commonwealth, State or Territory legislation

For subregulation 3.10A(1) of the Regulations, the Commonwealth, State or Territory legislation mentioned in Schedule 1 is specified.

Note The Minister may authorise an officer to perform one or more actions prohibited under subsection 488(1) of the Act for the purposes of prescribed Commonwealth, State or Territory legislation—see subparagraph 488(2)(a)(vii) of the Act.

7 Agencies, employees and purposes

For paragraphs 3.10A(2)(a), (b) and (c) of the Regulations:

- (a) each agency of the Commonwealth, a State or a Territory mentioned in an item of the table in Schedule 2 is specified; and
- (b) each employee of an agency mentioned in an item of the table in Schedule 2 is specified for the agency mentioned in that item; and
- (c) each purpose mentioned in an item of the table in Schedule 2 is specified for the agency mentioned in that item.

Note The Minister may authorise a prescribed employee of a prescribed agency of the Commonwealth or of a State or Territory to perform one or more actions otherwise prohibited under subsection 488(1) of the Act—see paragraph 488(2)(g) of the Act.

Schedule 1—Commonwealth, State or Territory legislation

(section 6)

Item	Specified legislation
1	<i>Administrative Review Tribunal 2024</i> (Cth)
2	<i>Aged Care Act 1997</i> (Cth)
3	<i>Adoption Act 2000</i> (NSW)
4	<i>Adoption Regulations 2015</i> (NSW)
5	<i>A New Tax System (Australian Business Number) Act 1999</i> (Cth)
6	<i>A New Tax System (Family Assistance) Act 1999</i> (Cth)
7	<i>A New Tax System (Family Assistance) (Administration) Act 1999</i> (Cth)
8	<i>A New Tax System (Goods and Services Tax) Act 1999</i> (Cth)
9	<i>A New Tax System (Luxury Car Tax) Act 1999</i> (Cth)
10	<i>A New Tax System (Wine Equalisation Tax) Act 1999</i> (Cth)
11	<i>Anti-Money Laundering and Counter-Terrorism Financing Act 2006</i> (Cth)
12	<i>Archives Act 1983</i> (Cth)
13	<i>AusCheck Act 2007</i> (Cth)
14	<i>AusCheck Regulations 2017</i> (Cth)
15	<i>Australian Border Force Act 2015</i> (Cth)
16	<i>Australian Bureau of Statistics Act 1975</i> (Cth)
17	<i>Australian Citizenship Act 2007</i> (Cth)
18	<i>Australian Crime Commission Act 2002</i> (Cth)
19	<i>Australian Federal Police Act 1979</i> (Cth)
20	<i>Australian Hearing Services Act 1991</i> (Cth)
21	<i>Australian Human Rights Commission Act 1986</i> (Cth)
22	<i>Australian Institute of Health and Welfare Act 1987</i> (Cth)
23	<i>Australian Institute of Health and Welfare (Ethics Committee) Regulations 2018</i> (Cth)
24	<i>Australian Meat and Live-stock Industry (Repeals and Consequential Provisions) Act 1997</i> (Cth)
25	<i>Australian Passports Act 2005</i> (Cth)
26	<i>Australian Securities and Investments Commission Act 2001</i> (Cth)
27	<i>Australian Security Intelligence Organisation Act 1979</i> (Cth)
28	<i>Aviation Transport Security Act 2004</i> (Cth)
29	<i>Aviation Transport Security Regulations 2005</i> (Cth)
30	<i>Back to Work Act 2015</i> (Vic)
31	<i>Bail Act 1977</i> (Vic)
32	<i>Bail Act 1982</i> (WA)

Item	Specified legislation
33	<i>Bankruptcy Act 1966 (Cth)</i>
34	<i>Bankruptcy Regulations 2021 (Cth)</i>
35	<i>Betting Tax Act 2001 (NSW)</i>
36	<i>Biosecurity Act 2015 (Cth)</i>
37	<i>Biosecurity Charges Imposition (Customs) Act 2015 (Cth)</i>
38	<i>Biosecurity Charges Imposition (Excise) Act 2015 (Cth)</i>
39	<i>Biosecurity Charges Imposition (General) Act 2015 (Cth)</i>
40	<i>Biosecurity (Consequential Amendments and Transitional Provisions) Act 2015 (Cth)</i>
41	<i>Building Boost Grant Act 2011 (Qld)</i>
42	<i>Building Services (Complaint Resolution and Administration) Act 2011 (WA)</i>
43	<i>Building Services (Registration) Act 2011 (WA)</i>
44	<i>Business Names Registration Act 2011 (Cth)</i>
45	<i>Business Names Registration (Transitional and Consequential Provisions) Act 2011 (Cth)</i>
46	<i>Care and Protection of Children Act 2007 (NT)</i>
47	<i>Census and Statistics Act 1905 (Cth)</i>
48	<i>Children and Young People (Safety) Act 2017 (SA)</i>
49	<i>Child Care Act 1972 (Cth)</i>
50	<i>Child Protection Act 1999 (Qld)</i>
51	<i>Children and Community Services Act 2004 (WA)</i>
52	<i>Children and Young People Act 2008 (ACT)</i>
53	<i>Children and Young Persons (Care and Protection) Act 1998 (NSW)</i>
54	<i>Children and Young Persons (Care and Protection) Regulation 2022 (NSW)</i>
55	<i>Children, Young Persons and Their Families Act 1997 (Tas)</i>
56	<i>Child Support (Assessment) Act 1989 (Cth)</i>
57	<i>Child Support Legislation Amendment (Reform of the Child Support Scheme – New Formula and Other Measures) Act 2006 (Cth)</i>
58	<i>Child Support (Registration and Collection) Act 1988 (Cth)</i>
59	<i>Children, Youth and Families Act 2005 (Vic)</i>
60	<i>Civil Aviation Act 1988 (Cth)</i>
61	<i>Civil Aviation Regulations 1988 (Cth)</i>
62	<i>Civil Aviation Safety Regulations 1998 (Cth)</i>
63	<i>Commonwealth Electoral Act 1918 (Cth)</i>
64	<i>Competition and Consumer Act 2010 (Cth)</i>
65	<i>Confiscation Act 1997 (Vic)</i>

Item	Specified legislation
66	<i>Confiscation of Criminal Assets Act 2003</i> (ACT)
67	<i>Confiscation of Proceeds of Crime Act 1989</i> (NSW)
68	<i>Coroners Act 1993</i> (NT)
69	<i>Coroners Act 1995</i> (Tas)
70	<i>Coroners Act 1996</i> (WA)
71	<i>Coroners Act 1997</i> (ACT)
72	<i>Coroners Act 2003</i> (Qld)
73	<i>Coroners Act 2003</i> (SA)
74	<i>Coroners Act 2008</i> (Vic)
75	<i>Coroners Act 2009</i> (NSW)
76	<i>Corporations Act 2001</i> (Cth)
77	<i>Corrections Act 1986</i> (Vic)
78	<i>County Court Act 1958</i> (Vic)
79	<i>County Court Civil Procedure Rules 2018</i> (Vic)
80	<i>Crimes Act 1900</i> (ACT)
81	<i>Crimes Act 1900</i> (NSW)
82	<i>Crimes Act 1914</i> (Cth)
83	<i>Crimes Act 1958</i> (Vic)
84	<i>Confiscation Act 1997</i> (Vic)
85	<i>Crimes (Domestic and Personal Violence) Act 2007</i> (NSW)
86	<i>Crimes (Sentencing Procedure) Act 1999</i> (NSW)
87	<i>Criminal Code Act 1899</i> (Qld)
88	<i>Criminal Code Act 1924</i> (Tas)
89	<i>Criminal Code Act 1983</i> (NT)
90	<i>Criminal Code Act 1995</i> (Cth)
91	<i>Criminal Code Act Compilation Act 1913</i> (WA)
92	<i>Criminal Investigation Act 2006</i> (WA)
93	<i>Criminal Law Consolidation Act 1935</i> (SA)
94	<i>Criminal Property Confiscation Act 2000</i> (WA)
95	<i>Criminal Property Forfeiture Act 2002</i> (NT)
96	<i>Dental Benefits Act 2008</i> (Cth)
97	<i>Disability Services and Inclusion (Consequential Amendments and Transitional Provisions) Act 2023</i> (Cth)
98	<i>Domestic and Family Violence Act 2007</i> (NT)
99	<i>Domestic and Family Violence Protection Act 2012</i> (Qld)

Item	Specified legislation
100	<i>Drugs Misuse Act 1986</i> (Qld)
101	<i>Drug Misuse and Trafficking Act 1985</i> (NSW)
102	<i>Drugs, Poisons and Controlled Substances Act 1981</i> (Vic)
103	<i>Duties Act 1997</i> (NSW)
104	<i>Duties Act 2000</i> (Vic)
105	<i>Duties Act 2001</i> (Tas)
106	<i>Duties Act 2008</i> (WA)
107	<i>Education Act 1990</i> (NSW)
108	<i>Education Services for Overseas Students Act 2000</i> (Cth)
109	<i>Emergency Services Levy Act 2017</i> (NSW)
110	<i>Evidence Act 1995</i> (Cth)
111	<i>Excise Tariff Act 1921</i> (Cth)
112	<i>Expiation of Offences Act 1996</i> (SA)
113	<i>Export Control Act 2020</i> (Cth)
114	<i>Extradition Act 1988</i> (Cth)
115	<i>Fair Trading Act 1987</i> (NSW)
116	<i>Fair Trading Act 2010</i> (WA)
117	<i>Fair Work Act 2009</i> (Cth)
118	<i>Family Court Act 1997</i> (WA)
119	<i>Family Law (Child Abduction Convention) Regulations 1986</i> (Cth)
120	<i>Family Law (Child Protection Convention) Regulations 2003</i> (Cth)
121	<i>Family Law Regulations 1984</i> (Cth)
122	<i>Family Violence Act 2004</i> (Tas)
123	<i>Family Violence Act 2016</i> (ACT)
124	<i>Family Violence Protection Act 2008</i> (Vic)
125	<i>Farm Household Support Act 2014</i> (Cth)
126	<i>Financial Transaction Reports Amendment (Transitional Arrangements) Act 2008</i> (Cth)
127	<i>Fines Act 1996</i> (NSW)
128	<i>Fines Reform Act 2014</i> (Vic)
129	<i>Fire Services Property Levy Act 2012</i> (Vic)
130	<i>Firearms Act 1996</i> (Vic)
131	<i>First Home and Housing Construction Grants Act 2000</i> (SA)
132	<i>First Home Owner Grant Act 2000</i> (ACT)
133	<i>First Home Owner Grant Act 2000</i> (NT)
134	<i>First Home Owner Grant and Other Home Owner Grants Act 2000</i> (Qld)

Item	Specified legislation
135	<i>First Home Owner Grant Act 2000</i> (Tas)
136	<i>First Home Owner Grant and Home Buyer Schemes Act 2000</i> (Vic)
137	<i>First Home Owner Grant Act 2000</i> (WA)
138	<i>First Home Owner Grant and Shared Equity Act 2000</i> (NSW)
139	<i>Fringe Benefits Tax Assessment Act 1986</i> (Cth)
140	<i>Fuel Tax Act 2006</i> (Cth)
141	<i>Health Administration Act 1982</i> (NSW)
142	<i>Health and Other Services (Compensation) Act 1995</i> (Cth)
143	<i>Health Care Complaints Act 1993</i> (NSW)
144	<i>Health Insurance Act 1973</i> (Cth)
145	<i>Health Insurance Levies Act 1982</i> (NSW)
146	<i>Health Ombudsman Act 2013</i> (Qld)
147	<i>Health Practitioner Regulation (Adoption of National Law) Act 2009</i> (NSW)
148	<i>Health Practitioner Regulation National Law Act 2009</i> (Qld)
149	<i>Higher Education Support Act 2003</i> (Cth)
150	<i>Human Services (Medicare) Act 1973</i> (Cth)
151	<i>Illegal Logging Prohibition Act 2012</i> (Cth)
152	<i>Immigration (Education) Act 1971</i> (Cth)
153	<i>Immigration (Education) Regulations 2018</i> (Cth)
154	<i>Immigration (Guardianship of Children) Act 1946</i> (Cth)
155	<i>Immigration (Guardianship of Children) Regulations 2018</i> (Cth)
156	<i>Imported Food Control Act 1992</i> (Cth)
157	<i>Income Tax Assessment Act 1936</i> (Cth)
158	<i>Income Tax Assessment Act 1997</i> (Cth)
159	<i>Industrial Relations Act 1979</i> (WA)
160	<i>Information Act 2002</i> (NT)
161	<i>Infringements Act 2006</i> (Vic)
162	<i>Insurance Contracts Act 1984</i> (Cth)
163	<i>Intelligence Services Act 2001</i> (Cth)
164	<i>International Criminal Court Act 2002</i> (Cth)
165	<i>International Transfer of Prisoners Act 1997</i> (Cth)
166	<i>International War Crimes Tribunal Act 1995</i> (Cth)
167	<i>Land Tax Act 1956</i> (NSW)
168	<i>Land Tax Act 2000</i> (Tas)
169	<i>Land Tax Act 2005</i> (Vic)

Item	Specified legislation
170	<i>Land Tax Act 2010</i> (Qld)
171	<i>Land Tax Assessment Act 2002</i> (WA)
172	<i>Land Tax Management Act 1956</i> (NSW)
173	<i>Life Insurance Act 1995</i> (Cth)
174	<i>Long Service Leave Act 1958</i> (WA)
175	<i>Magistrates' Court Act 1989</i> (Vic)
176	<i>Magistrates' Court General Civil Procedure Rules 2020</i> (Vic)
177	<i>Maritime Transport and Offshore Facilities Security Act 2003</i> (Cth)
178	<i>Maritime Transport and Offshore Facilities Security Regulations 2003</i> (Cth)
179	<i>Medical Indemnity Act 2002</i> (Cth)
180	<i>Midwife Professional Indemnity (Commonwealth Contribution) Scheme Act 2010</i> (Cth)
181	<i>Migration Regulations 1994</i> (Cth)
182	<i>Minerals Resource Rent Tax Repeal and Other Measures Act 2014</i> (Cth)
183	<i>Minimum Conditions of Employment Act 1993</i> (WA)
184	<i>Misuse of Drugs Act 1981</i> (WA)
185	<i>Mutual Assistance in Criminal Matters Act 1987</i> (Cth)
186	<i>National Consumer Credit Protection Act 2009</i> (Cth)
187	<i>National Consumer Credit Protection (Transitional and Consequential Provisions) Act 2009</i> (Cth)
188	<i>National Disability Insurance Scheme Act 2013</i> (Cth)
189	<i>National Anti-Corruption Commission Act 2022</i> (Cth)
190	<i>National Health Act 1953</i> (Cth)
191	<i>National Health Reform Act 2011</i> (Cth)
192	<i>National Health Security Act 2007</i> (Cth)
193	<i>Oaths Act 1900</i> (NSW)
194	<i>Office of National Intelligence Act 2018</i> (Cth)
195	<i>Ombudsman Act 1976</i> (Cth)
196	<i>Paid Parental Leave Act 2010</i> (Cth)
197	<i>Payroll Tax Act 2007</i> (Vic)
198	<i>Payroll Tax Act 2007</i> (NSW)
199	<i>Payroll Tax Act 2008</i> (Tas)
200	<i>Payroll Tax Act 2009</i> (SA)
201	<i>Pay-roll Tax Assessment Act 2002</i> (WA)
202	<i>Police Powers and Responsibilities Act 2000</i> (Qld)
203	<i>Prisons Act 1981</i> (WA)

Item	Specified legislation
204	<i>Proceeds of Crime Act 2002</i> (Cth)
205	<i>Product Grants and Benefits Administration Act 2000</i> (Cth)
206	<i>Professional Engineers Act 2002</i> (Qld)
207	<i>Public Health Act 2010</i> (NSW)
208	<i>Public Service Act 1999</i> (Cth)
209	<i>Residential Tenancies Act 1987</i> (WA)
210	<i>Residential Tenancies Act 2010</i> (NSW)
211	<i>Restraining Orders Act 1997</i> (WA)
212	<i>Retirement Savings Accounts Act 1997</i> (Cth)
213	<i>Road Safety Act 1986</i> (Vic)
214	<i>Road Transport Act 2013</i> (NSW)
215	<i>Safety Rehabilitation and Compensation Act 1988</i> (Cth)
216	<i>Sentence Administration Act 2003</i> (WA)
217	<i>Sentencing Act 1991</i> (Vic)
218	<i>Sentencing Act 2017</i> (SA)
219	<i>Sentencing Act 1995</i> (WA)
220	<i>Sheriff Act 2009</i> (Vic)
221	<i>Small Superannuation Accounts Act 1995</i> (Cth)
222	<i>Social Security Act 1991</i> (Cth)
223	<i>Social Security (Administration) Act 1999</i> (Cth)
224	<i>Social Security (International Agreements) Act 1999</i> (Cth)
225	<i>Sport Integrity Australia Act 2020</i> (Cth)
226	<i>Sport Integrity Australia Regulations 2020</i> (Cth)
227	<i>State Debt Recovery Act 2018</i> (NSW)
228	<i>Student Assistance Act 1973</i> (Cth)
229	<i>Superannuation Contributions Tax (Assessment and Collection) Act 1997</i> (Cth)
230	<i>Superannuation Contributions Tax (Members of Constitutionally Protected Superannuation Funds) Assessment and Collection Act 1997</i> (Cth)
231	<i>Superannuation (Departing Australia Superannuation Payments Tax) Act 2007</i> (Cth)
232	<i>Superannuation (Government Co-contribution for Low Income Earners) Act 2003</i> (Cth)
233	<i>Superannuation Guarantee (Administration) Act 1992</i> (Cth)
234	<i>Superannuation Industry (Supervision) Act 1993</i> (Cth)
235	<i>Superannuation Industry (Supervision) Regulations 1994</i> (Cth)
236	<i>Superannuation (Unclaimed Money and Lost Members) Act 1999</i> (Cth)
237	<i>Supreme Court Act 1986</i> (Vic)

Item	Specified legislation
238	<i>Tax Agent Services Act 2009</i> (Cth)
239	<i>Taxation Administration Act 1953</i> (Cth)
240	<i>Taxation Administration Act 1996</i> (NSW)
241	<i>Taxation Administration Act 1996</i> (SA)
242	<i>Taxation Administration Act 1997</i> (Tas)
243	<i>Taxation Administration Act 1997</i> (Vic)
244	<i>Taxation Administration Act 1999</i> (ACT)
245	<i>Taxation Administration Act 2001</i> (Qld)
246	<i>Taxation Administration Act 2003</i> (WA)
247	<i>Taxation Administration Act 2007</i> (NT)
248	<i>Terrorism (Community Protection) Act 2003</i> (Vic)
249	<i>Terrorism (High Risk Offenders) Act 2017</i> (NSW)
250	<i>Trade Support Loans Amendment Act 2023</i> (Cth)
251	<i>Treasury Laws Amendment (Fair and Sustainable Superannuation) Act 2016</i> (Cth)
252	<i>Unclaimed Money Act 1995</i> (NSW)
253	<i>Unclaimed Money Act 2008</i> (Vic)
254	<i>Veterans' Entitlements Act 1986</i> (Cth)
255	<i>Water Efficiency Labelling and Standards Act 2005</i> (Cth)
256	<i>Weapons Act 1990</i> (Qld)
257	<i>Weapons Act 1999</i> (WA)
258	<i>Witness Protection Act 1994</i> (Cth)

Schedule 2—Agencies, employees and purposes

(section 7)

Item	Agency	Employee	Purpose
1	Administrative Review Tribunal (ART)	APS 3 to EL 2	To assist in the conduct of independent merits review of administrative decisions made by the Minister for Home Affairs, or their delegate, directly related to migration and refugee visas and visa related decisions under the following: (a) <i>Administrative Review Tribunal Act 2024</i> (Cth); (b) <i>Migration Act 1958</i> (Cth)
2	Australian Bureau of Statistics	An APS 6, EL 1 or EL 2, with responsibility for the collection, compilation, analysis and dissemination of migration statistics	To collect statistical information relating to social, economic and demographic characteristics directly in relation to the performance of statutory functions under the following Acts: (a) <i>Australian Bureau of Statistics Act 1975</i> (Cth); (b) <i>Census and Statistics Act 1905</i> (Cth)
3	Australian Competition and Consumer Commission (ACCC)	An employee in the Data & Intelligence Branch performing statutory duties to investigate and administer compliance under Act mentioned in this item	To perform statutory duties and associated functions directly in relation to the administration of the <i>Competition and Consumer Act 2010</i> (Cth)
4	Australian Criminal Intelligence Commission (ACIC)	An employee of the ACIC who is employed under the <i>Public Service Act 1999</i> (Cth) and in the course of their employment, perform statutory duties and associated functions under the <i>Australian Crime Commission Act 2002</i> in the following areas within the ACIC: • Intelligence Operations • Covert Collections and Insights	To perform statutory duties and associated functions directly in relation to the administration of the following Acts: (a) <i>Australian Crime Commission Act 2002</i> (Cth); (b) <i>Criminal Code Act 1995</i> (Cth)

Item	Agency	Employee	Purpose
5	Australian Electoral Commission (AEC)	An employee listed below within the Elections Branch who performs functions in relation to the review and processing of electors who appear to have failed to vote at an election under that Act: (a) Assistant Commissioner; (b) Director; (c) Assistant Director; (d) Senior Project Officer; (e) Project Officer	To perform statutory duties and functions directly in relation to the administration of the <i>Commonwealth Electoral Act 1918</i> (Cth)
6	Australian Federal Police (AFP)	Any of the following: (a) an AFP employee (as defined in section 4 of the <i>Australian Federal Police Act 1979</i> (Cth) (the AFP Act) or an AFP appointee who is engaged under section 69A of the AFP Act, who in the course of employment performs statutory duties and associated functions under the AFP Act on behalf of the AFP; (b) an AFP member, an AFP employee (as defined in the AFP Act), or an AFP appointee who is engaged under section 69A of the AFP Act, who in the course of employment is engaged to assist in the conduct of security vetting for Commonwealth, State and Territory agencies	(a) To perform statutory duties and associated functions directly in relation to the administration of the AFP Act; and (b) to assist authorised vetting agencies (including the AFP) to conduct security vetting
7	Australian Government Attorney-General's Department (AGD)	Any of the following: (a) Assistant Secretary, Transitional Crime and Corruption Branch; (b) Officer of the International Transfer of Prisoners Unit; (c) Officer of the Internal Crime Cooperation Central Authority;	(a) To consider enquiries directly in relation to: (i) applications by prisoners for international transfer, or applications for international transfer, in accordance with the <i>International Transfer of Prisoners Act 1997</i> (Cth); (ii) extradition or extradition requests from Australia to another country or from another country to Australia;

Item	Agency	Employee	Purpose
		(d) Assistant Secretary, Family Law Branch; (e) EL 2, International Family Law Section; (f) Assistant Director, EL 1, International Family Law Section; (g) Principal Legal Officer, International Family Law Section; (h) Senior Legal Officer, International Family Law Section; (i) Legal Officer, International Family Law Section; (j) Case Officer, International Family Law Section; (k) Graduate, International Family Law Section	(iii) mutual assistance, or mutual assistance requests; cooperation, or requests for cooperation, directly in relation to the administration of the following Acts: (A) <i>Criminal Code Act 1995</i> (Cth); (B) <i>Extradition Act 1988</i> (Cth); (C) <i>Family Law Act 1975</i> (Cth); (D) <i>Family Law Regulations 1984</i> (Cth); (E) <i>International Criminal Court Act 2002</i> (Cth); (F) <i>International War Crimes Tribunal Act 1995</i> (Cth); (G) <i>Mutual Assistance in Criminal Matters Act 1987</i> (Cth); or (b) to undertake work directly in relation to child protection measures, international child abduction matters and international maintenance matters, under a range of international instruments and agreements, in accordance with the following: (i) <i>Family Law (Child Abduction Convention) Regulations 1986</i> (Cth); (ii) <i>Family Law (Child Protection Convention) Regulations 2003</i> (Cth); or (c) to perform duties and functions directly in relation to bilateral agreements between the Government of Australia and the Government of the Republic of Lebanon, and the Government of the Arab Republic of Egypt, regarding cooperation on protecting the welfare of children
8	Australian Institute of Health and Welfare (AIHW)	An employee of AIHW who interrogate and validate statistical data to produce evidence based statistics and reports on health and welfare matters under:	To perform statutory duties directly in relation to the administration of the following Acts: (a) <i>Australian Institute of Health and Welfare Act 1987</i> (Cth);

Item	Agency	Employee	Purpose
		(a) <i>Australian Institute of Health and Welfare Act 1987</i> (Cth); and (b) <i>Australian Institute of Health and Welfare (Ethics Committee) Regulations 2018</i> (Cth)	(b) <i>Australian Institute of Health and Welfare (Ethics Committee) Regulations 2018</i> (Cth)
9	Australian Secret Intelligence Service (ASIS)	An employee of ASIS with responsibility to assist authorised vetting agencies (including ASIS) to conduct security vetting	To assist authorised vetting agencies (including ASIS) to conduct security vetting
10	Australian Securities and Investments Commission (ASIC)	An employee of the Intelligence Support Unit	To perform statutory duties and associated functions directly in relation to the administration of the following Acts: (a) <i>Australian Securities and Investments Commission Act 2001</i> (Cth); (b) <i>Banking Act 1959</i> (Cth); (c) <i>Business Names Registration (Transitional and Consequential Provisions) Act 2011</i> (Cth); (d) <i>Business Names Registration Act 2011</i> (Cth); (e) <i>Corporations Act 2001</i> (Cth); (f) <i>Crimes Act 1900</i> (ACT); (g) <i>Crimes Act 1914</i> (Cth); (h) <i>Crimes Act 1900</i> (NSW); (i) <i>Criminal Code Act 1983</i> (NT); (j) <i>Crimes Act 1958</i> (Vic); (k) <i>Criminal Code Act 1995</i> (Cth); (l) <i>Criminal Code Act 1899</i> (Qld); (m) <i>Criminal Code Act 1924</i> (Tas); (n) <i>Criminal Code Act Compilation Act 1913</i> (WA); (o) <i>Criminal Law Consolidation Act 1935</i> (SA); (p) <i>Financial Sector (Transfer and Restructure) Act 1999</i> (Cth); (q) <i>Foreign Evidence Act 1994</i> (Cth);

Item	Agency	Employee	Purpose
			(r) <i>Insurance Contracts Act 1984</i> (Cth); (s) <i>Life Insurance Act 1995</i> (Cth); (t) <i>Medical Indemnity (Prudential Supervision and Product Standards) Act 2003</i> (Cth); (u) <i>Mutual Assistance in Business Regulation Act 1992</i> (Cth); (v) <i>National Consumer Credit Protection (Transitional and Consequential Provisions) Act 2009</i> (Cth); (w) <i>National Consumer Credit Protection Act 2009</i> (Cth); (x) <i>Proceeds of Crime Act 2002</i> (Cth); (y) <i>Retirement Savings Accounts Act 1997</i> (Cth); (z) <i>Superannuation Industry (Supervision) Act 1993</i> (Cth).
11	Australian Security Intelligence Organisation (ASIO)	An ASIO employee, as defined in section 4 of the <i>Australian Security Intelligence Organisation Act 1979</i> (Cth), with responsibility to: (a) perform statutory duties and associated functions on behalf of ASIO; (b) assist authorised vetting agencies (including ASIO) to conduct security vetting for Commonwealth, State and Territory agencies	(a) To perform statutory duties and associated functions directly in relation to the administration of the <i>Australian Security Intelligence Organisation Act 1979</i> (Cth); and (b) to assist authorised vetting agencies (including ASIO) to conduct security vetting
12	Australian Signals Directorate (ASD)	An employee of ASD with responsibility to perform statutory duties and associated functions on behalf of the ASD	To perform statutory duties and associated functions directly in relation to the administration of the <i>Intelligence Services Act 2001</i> (Cth).
13	Australian Taxation Office (ATO)	An employee of ATO performing duties in the following: (a) Client Engagement Group; (b) Service Delivery Group; (c) Objections and Review Business Line;	To perform statutory duties and associated functions directly in relation to the administration of the following Acts: (a) <i>A New Tax System (Australian Business Number) Act 1999</i> (Cth);

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		(d) Fraud Prevention and International Investigations Business Line	(b) <i>A New Tax System (Family Assistance) (Administration) Act 1999</i> (Cth); (c) <i>A New Tax System (Family Assistance) Act 1999</i> (Cth); (d) <i>A New Tax System (Goods and Services Tax) Act 1999</i> (Cth); (e) <i>A New Tax System (Luxury Car Tax) Act 1999</i> (Cth); (f) <i>A New Tax System (Wine Equalisation Tax) Act 1999</i> (Cth); (g) <i>Freedom of Information Act 1982</i> (Cth); (h) <i>Fringe Benefits Tax Assessment Act 1986</i> (Cth); (i) <i>Higher Education Support Act 2003</i> (Cth); (j) <i>Income Tax Assessment Act 1936</i> (Cth); (k) <i>Income Tax Assessment Act 1997</i> (Cth); (l) <i>Privacy Act 1988</i> (Cth); (m) <i>Public Governance, Performance and Accountability Act 2013</i> (Cth); (n) <i>Public Service Act 1999</i> (Cth); (o) <i>Retirement Savings Accounts Act 1997</i> (Cth); (p) <i>Social Security Act 1991</i> (Cth); (q) <i>Superannuation (Government Co-contribution for Low Income Earners) Act 2003</i> (Cth); (r) <i>Superannuation (Unclaimed Money and Lost Members) Act 1999</i> (Cth); (s) <i>Superannuation Contributions Tax (Members of Constitutionally Protected Superannuation Funds) Assessment and Collection Act 1997</i> (Cth); (t) <i>Superannuation Guarantee (Administration) Act 1992</i> (Cth); (u) <i>Superannuation Industry (Supervision) Act 1993</i> (Cth);

Item	Agency	Employee	Purpose
			(v) <i>Taxation (Interest on Overpayments and Early Payments) Act 1983</i> (Cth); (w) <i>Taxation Administration Act 1953</i> (Cth); (x) <i>Trade Support Loans Act 2014</i> (Cth)
14	Australian Transaction Reports and Analysis Centre (AUSTRAC)	An employee of AUSTRAC who performs statutory duties to investigate and administer compliance under legislation AUSTRAC administers	To perform statutory duties and associated functions directly in relation to the administration of the following Acts: (a) <i>Anti-Money Laundering and Counter Terrorism-Financing Act 2006</i> (Cth); (b) <i>Financial Transaction Reports Act 1988</i> (Cth)
15	Board of Professional Engineers of Queensland	Any employee holding one of the following positions: (a) Principal Legal Officer; (b) Principal Lawyer; (c) Senior Legal Officer; (d) Legal Officer; (e) Principal Investigator; (f) Senior Investigator; (g) Investigator; (h) Investigations Support Officer	To perform statutory duties and associated functions directly in relation to the administration of the <i>Professional Engineers Act 2002</i> (Qld).
16	Building Commission NSW	Employees who perform statutory duties and associated functions to investigate and administer compliance under the listed legislation administered by this agency	To perform statutory duties and associated functions directly in relation to administration of the following Acts: (a) <i>Building and Development Certifiers Act 2018</i> (NSW); (b) <i>Design and Building Practitioners Act 2020</i> (NSW); (c) <i>Crimes Act 1900</i> (Cth); (d) <i>Home Building Act 1989</i> (NSW); (e) <i>Residential Apartment Buildings (Compliance and Enforcement Powers) Act 2020</i> (NSW);

Item	Agency	Employee	Purpose
17	Clean Energy Regulator (CER)	Any of the following: (a) APS 4, APS 5, APS 6, EL 1 or EL 2 in the Intelligence and Assessment Section; (b) APS 5, APS 6, EL 1 or EL 2 in the Compliance and Enforcement Section; (c) SES 1 in the Compliance Branch; (d) SES 2 in the Compliance Branch; (e) SES 2 in the Scheme Support Division	To perform statutory duties and associated functions under the following: (a) <i>Carbon Credits (Carbon Farming Initiative) Act 2011</i> (Cth); (b) <i>Clean Energy Legislation (Carbon Tax Repeal) Act 2014</i> (Cth); (c) <i>Clean Energy Regulator Act 2011</i> (Cth); (d) <i>National Greenhouse and Energy Reporting Act 2007</i> (Cth); (e) <i>Renewable Energy (Electricity) Act 2000</i> (Cth)
18	Department of Agriculture, Fisheries and Forestry (DAFF)	Any of the following: (a) APS 4, APS 5, APS 6 or EL 1 in the Enforcement Integrity section; (b) APS 4, APS 5, APS 6 or EL 1 in the Governance and Operations Support area	To perform statutory duties and associated functions directly in relation to the administration of the following Acts: (a) <i>Biosecurity (Consequential Amendments and Transitional Provisions) Act 2015</i> (Cth); (b) <i>Biosecurity Act 2015</i> (Cth); (c) <i>Criminal Code Act 1995</i> (Cth); (d) <i>Export Control Act 2020</i> (Cth); (e) <i>Illegal Logging Prohibition Act 2012</i> (Cth); (f) <i>Imported Food Control Act 1992</i> (Cth); (g) <i>Regulatory Powers (Standard Provisions) Act 2014</i> (Cth); (h) <i>Water Efficiency Labelling and Standards Act 2005</i> (Cth); (i) <i>Australian Meat and Live-stock Industry Act 1997</i> (Cth)
19	Department of Defence - Australian Government Security Vetting Agency (AGSVA)	An employee of AGSVA with responsibility to assist authorised vetting agencies (including AGSVA) to conduct security vetting.	To assist authorised vetting agencies (including AGSVA) to conduct security vetting.

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20	Department of Defence – Defence Intelligence Organisation (DIO)	An employee of DIO with responsibility to perform statutory duties and associated functions on behalf of the DIO.	To perform statutory duties and associated functions directly in relation to the administration of the <i>Intelligence Services Act 2001</i> (Cth).
21	Department of Education	Any of the following: (a) an employee in the Intelligence Analytics Team; (b) an employee appointed under subsection 219UD(1) of the <i>A New Tax System (Family Assistance (Administration) Act 1999</i> (Cth); (c) an employee in the Fraud Investigations Tactical Operations Team; (d) an Employee in the Financial Integrity Branch	(a) To perform statutory duties and associated functions directly in relation to the administration of the following Acts: (i) <i>A New Tax System (Family Assistance (Administration) Act 1999</i> (Cth); (ii) <i>A New Tax System (Family Assistance) Act 1999</i> (Cth); (iii) <i>Crimes Act 1914</i> (Cth); (iv) <i>Criminal Code Act 1995</i> (Cth); (v) <i>Evidence Act 1995</i> (Cth); (b) to assist criminal investigations of matters relating to fraud within the Family Assistance sector, conspiracies to defraud the Commonwealth and unlawfully dealing in the proceeds of crime
22	Department of Foreign Affairs and Trade (DFAT)	Any of the following: (a) Consular Officers and Case Officers, Canberra; (b) Consular Officers, Passports, London; (c) Consular Officers, Passports, Washington; (d) Director, Passports/Consular, Washington; (e) Passport Case Officers, Passports, Adelaide; (f) Passport Case Officers, Passports, Brisbane; (g) Passport Case Officers, Passports, Canberra; (h) Passport Case Officers, Passports, Darwin; (i) Passport Case Officers, Passports, London; (j) Passport Case Officers, Passports, Melbourne; (k) Passport Case Officers, Passports, Perth; (l) Passport Case Officers, Passports, Sydney; (m) Passport Case Officers, Passports, Hobart;	(a) To perform statutory duties and associated functions directly in relation to the administration of the following Acts: (i) <i>Australian Passports Act 2005</i> (Cth); (ii) <i>Foreign Passports (Law Enforcement and Security) Act 2005</i> (Cth); (b) to validate eligibility for COI and CDT travel documents; (c) to assist authorised vetting agencies (including DFAT) to conduct security vetting

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		(n) Fraud Officers, Passports, Brisbane; (o) Fraud Officers, Passports, Canberra; (p) Fraud Officers, Passports, Melbourne; (q) Fraud Officers, Passports, Perth; (r) Fraud Officers, Passports, Sydney; (s) Manager, Passports, Adelaide; (t) Manager, Passports, Brisbane; (u) Manager, Passports, Canberra; (v) Manager, Passports, Darwin; (w) Manager, Passports, Hobart; (x) Manager, Passports, London; (y) Manager, Passports, Melbourne; (z) Manager, Passports, Perth; (za) Manager, Passports, Sydney; (zb) Manager, Passports, Washington; (zc) Officers, Consular Emergency Centre (CEC), Canberra; (zd) Officers, Passport Policy and Operations Section (PPOS), Canberra; (ze) Policy Officers, Passports, Canberra; (zf) Protocol Officers, Canberra; (zg) Regional Director, Passports, Brisbane; (zh) Regional Director, Passports, Canberra; (zi) Regional Director, Passports, Melbourne; (zj) Regional Director, Passports, Sydney; (zk) Employee engaged in conducting security vetting for Commonwealth, State and Territory agencies	
23	Department of Health, Disability and Ageing	Any of the following: (a) APS 4 to EL 2 in the Benefits Integrity Division;	(a) To perform statutory duties and associated functions directly in relation to the administration of the following Acts, and to ensure the protection of

Item	Agency	Employee	Purpose
		(b) APS 4 to EL 2 in the Fraud and Integrity Branch of the Integrity and Assurance Division; (c) APS 4 to EL 2 in the Health Emergency Management Branch of the Health Security & Emergency Management Division; (d) An officer undertaking functions within the National Incident Centre in the Health Emergency Management Branch of the Health Security & Emergency Management Division.	public revenue and integrity of Commonwealth payments: (i) <i>Health Insurance Act 1973</i> (Cth); (ii) <i>National Health Act 1953</i> (Cth); (iii) <i>Dental Benefits Act 2008</i> (Cth); (iv) <i>Aged Care Act 2024</i> (Cth); (v) <i>Criminal Code Act 1995</i> (Cth); (vi) <i>Evidence Act 1995</i> (Cth); (vii) <i>Crimes Act 1914</i> (Cth); (viii) <i>Public Service Act 1999</i> (Cth); (ix) <i>Australian Hearing Services 1991</i> (Cth) (b) to identify individuals at risk of exposure to public health hazards; (c) to supply contact information to the relevant jurisdiction's health department or ministry under the <i>National Health Security Act 2007</i> (Cth).
24	Department of Home Affairs	An employee who is responsible for: (a) liaising with Asia Pacific Economic Cooperation (APEC); (b) managing integrated management reporting; (c) assisting police with missing persons investigations; (d) assisting DFAT in the provision of movement records for consular functions or activities during international event situations; (e) engaging in conducting security vetting for Commonwealth, State and Territory agencies; (f) disclosing movement records to Commonwealth State and Territory agencies that request such information;	To perform statutory duties and associated functions directly in relation to the administration of the following: (a) to assess an individual's eligibility for the APEC travel card; (b) to manage integrated management reporting; (c) to perform border-related functions; (d) to assist the AFP and State and Territory police forces, with missing persons investigations; (e) to assist with consular enquiries and activities; (f) to assist authorised vetting agencies (including the Department of Home Affairs) to conduct security vetting; (g) to assist in the administration of the Adult Migration English Program in accordance with statutory obligations under the <i>Immigration (Education) Act 1971</i> (Cth);

Item	Agency	Employee	Purpose
		(g) Legal Officers involved in obtaining movement records for the purposes of Migration Litigation.	(h) to assist the Defence Intelligence Organisation (DIO) in complying with the rules made under section 41C of the <i>Intelligence Services Act 2001</i> (Cth) regarding the communication and retention of intelligence information concerning Australian citizens and permanent residents.
25	Department of Justice and Community Safety, Victoria	Any of the following: An employee of the Department of Justice and Community Safety who: (a) is responsible for performing statutory functions and associated duties for or on behalf of the Sheriff of Victoria or the Director, Fines Victoria; or (b) is responsible for assisting the Department of Justice and Community Safety in its law enforcement functions and activities in relation to fines, warrants and enforcement activities.	(a) To perform statutory duties and associated functions directly in relation to any of the following legislation: (i) <i>Sheriff Act 2009</i> (Vic); (ii) <i>Section 6 of the Fines Reform Act 2014</i> (Vic); (iii) <i>Infringements Act 2006</i> (Vic); (iv) <i>Sentencing Act 1991</i> (Vic); (v) <i>Magistrates' Court Act 1989</i> (Vic); (vi) <i>Supreme Court (General Civil Procedure) Rules 2015</i> (Vic); (vii) <i>County Court Civil Procedure Rules 2018</i> (Vic); (viii) <i>Magistrates' Court General Civil Procedure Rules 2020</i> (Vic)
26	Department of Justice, Western Australia	An employee of the Information Release and Litigation Management area in the Knowledge Management Branch of the Corporate Services Division	To perform statutory duties and associated functions directly in relation to the administration of the following Acts: (a) <i>Bail Act 1982</i> (WA); (b) <i>Prisons Act 1981</i> (WA); (c) <i>Sentencing Act 1995</i> (WA); (d) <i>Sentence Administration Act 2003</i> (WA); (e) <i>Young Offenders Act 1994</i> (WA)
27	Department of Mines, Industry Regulation and Safety Western Australia (DMIRS)	Industrial Inspectors employed in the Private Sector Labour Relations Division of DMIRS who perform statutory duties to investigate and administer compliance under the Acts mentioned in this item	To perform statutory duties and associated functions directly in relation to the administration of the following Acts: (a) <i>Children and Community Services Act 2004</i> (WA);

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			(b) <i>Industrial Relations Act 1979</i> (WA); (c) <i>Long Service Leave Act 1958</i> (WA); (d) <i>Minimum Conditions of Employment Act 1993</i> (WA)
28	Department of Primary Industries and Regional Development NSW	An employee of the Department of Primary Industries and Regional Development performing statutory duties and associated functions on behalf of their agency. This includes: (a) Fisheries Officers, and (b) Intelligence Analysts.	To preform statutory duties and associated functions directly in relation to ensuring compliance and commencing prosecutions against persons found committing offences under the following Acts: • <i>Fisheries Management Act 1994</i> (NSW) • <i>Marine Estate Management Act 2014</i> (NSW)
29	Department of Treasury and Finance, South Australia	Any of the following: (a) Fines Enforcement and Recovery Officer; (b) Director, Business Transformation; (c) Manager, Client Contact; (d) Manager, Stakeholder Engagement; (e) Debt Strategist; (f) Team Leader; (g) Senior Collections Officer; (h) Collections Officer; (i) Project Officer Civil Debt; (j) Project Officer Stakeholder Engagement.	To perform statutory duties and associated functions directly in relation to the administration of the following Acts: (a) <i>Expiation of Offences Act 1996</i> (SA); (b) <i>Sentencing Act 2017</i> (SA); (c) <i>Fines Enforcement and Debt Recovery Act 2018</i> (SA)
30	Department of Veterans' Affairs (DVA)	APS 4 to EL 2 employees of the DVA who perform statutory duties and associated functions in relation to: (a) Monitoring and ensuring compliance by claimants; (b) Monitoring and enforcing compliance by DVA service providers; (c) Fraud Investigations and criminal prosecution;	(a) To perform statutory duties and associated functions directly in relation to the administration of the following Acts: (i) <i>Veterans' Entitlements Act 1986</i> (Cth); (ii) <i>Defence Service Homes Act 1918</i> (Cth); (iii) <i>Military Rehabilitation and Compensation Act 2004</i> (Cth); (iv) <i>Safety Rehabilitation and Compensation Act 1988</i> (Cth); (v) <i>War Graves Act 1980</i> (Cth);

Item	Agency	Employee	Purpose
		(d) Analysts reviewing claims for payment and provider claims; (e) Debt recovery.	(vi) <i>Social Security Act 1991</i> (Cth)
31	Fair Work Ombudsman (FWO)	Employee of the FWO and Fair Work Inspectors appointed under section 700 of the <i>Fair Work Act 2009</i> (Cth)	To perform statutory duties and associated functions under the <i>Fair Work Act 2009</i> (Cth)
32	National Anti-Corruption Commission (NACC)	An employee of the NACC performing statutory duties to investigate and administer compliance under the Act mentioned in this item.	To perform statutory duties and associated functions directly in relation to the administration of the <i>National Anti-Corruption Commission Act 2022</i> (Cth)
33	National Disability Insurance Agency (NDIA)	Any of the following: (a) APS 4 to EL 2 in the Integrity Transformation and Fraud Fusion Taskforce Group; (b) APS 4 to EL 2 in the Service Delivery Group.	To perform statutory duties and associated functions directly in relation to the following purposes: (a) to ensure the integrity of the <i>National Disability Insurance Scheme</i> ; (b) to protect public revenue in the administration of the <i>National Disability Insurance Scheme Act 2013</i> (Cth)
34	National Disability Insurance Scheme Quality and Safeguards Commission (NDIS Quality and Safeguards Commission).	Employees of the NDIS Quality and Safeguards Commission who perform statutory duties and associated functions in relation to roles that are undertaken by the following areas in the agency: (a) APS 4 – EL 2 in the areas responsible for compliance, enforcement, intelligence and investigative functions.	To perform statutory duties and associated functions directly in relation to the administration of the following Act: (a) <i>National Disability Insurance Scheme 2013</i> (Cth), specifically Chapter 6A-NDIS Quality and Safeguards Commission. (b) Compliance and enforcement powers are at Division 8-Compliance and Enforcement and include powers relating to monitoring, investigations, civil penalties, infringement notices, compliance orders, banning orders, revocation of registration, enforceable undertaking and injunctions. These powers are at sections 73ZE to 73ZR of the <i>National Disability Insurance Scheme 2013</i> (Cth) in Division 8.

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35	New South Wales Fair Trading	Employees who perform statutory duties to investigate and ensure compliance under the relevant legislation New South Wales Fair Trading administers.	To assist in the investigation and prosecution of breaches of compliance under the following Acts; (a) <i>Fair Trading Act 1987</i> (NSW); (b) <i>Crimes Act 1900</i> (Cth)
36	New South Wales Police Force (NSW Police Force)	An officer or employee who: (a) has responsibility to perform statutory duties and associated functions on behalf of the NSW Police Force; or (b) is engaged in investigations involving persons who have been reported as missing	(a) To perform statutory duties and associated functions directly in relation to the administration of the following Acts: (i) <i>Coroners Act 2009</i> (NSW); (ii) <i>Crimes (Sentencing Procedure) Act 1999</i> (NSW); (iii) <i>Crimes Act 1900</i> (NSW); (iv) <i>Crimes Act 1914</i> (Cth); (b) to assist in the administration and enforcement of laws directly relating to a criminal law, the prevention of a crime or the detection of criminal conduct; (c) to conduct missing persons investigations
37	Northern Territory Police (NT Police Force)	A member who: (a) has responsibility to perform statutory duties and associated functions on behalf of the NT Police Force; or (b) is engaged in investigations involving persons who have been reported as missing	(a) To perform statutory duties and associated functions directly in relation to the administration of the following Acts: (i) <i>Bail Act 1982</i> (NT); (ii) <i>Coroners Act 1993</i> (NT); (iii) <i>Crimes Act 1914</i> (Cth); (iii) <i>Criminal Code Act 1983</i> (NT); (iv) <i>Firearms Act 1997</i> (NT); (v) <i>Misuse of Drugs Act 1990</i> (NT); (vi) <i>Police (Special Investigative and Other Powers) Act 2015</i> (NT); (vii) <i>Police Administration Act 1978</i> (NT); (viii) <i>Serious Crime Control Act 2009</i> (NT); (ix) <i>Summary Offences Act 1923</i> (NT); (x) <i>Terrorism (Emergency Powers) Act 2003</i> (NT); (xi) <i>Weapons Control Act 2001</i> (NT);

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			(b) to assist in the administration and enforcement of laws directly relating to a criminal law, the prevention of a crime or the detection of criminal conduct; (c) to conduct missing persons investigations
38	Office of National Intelligence (ONI)	An employee who has responsibility to: (a) perform statutory duties and associated functions on behalf of the ONI; or (b) assist authorised vetting agencies (including ASIO) to conduct security vetting for Commonwealth, State and Territory agencies	(a) To perform statutory duties and associated functions directly in relation to the administration of the <i>Office of National Intelligence Act 2018</i> (Cth); and (b) to assist authorised vetting agencies, including ONI, to conduct security vetting
39	Queensland Revenue Office (QRO)	Any of the following: (a) Administrative Officer Level 3 to Senior Officer Level 1 in the Land Tax Division; (b) Administrative Officer Level 4 to Senior Officer Level 1 in the Duties and Grants Division; (c) Administrative Officer Level 4 to Senior Officer Level 1 in the Royalties Division; (d) Administrative Officer Level 4 to Senior Officer Level 1 in the Risk Analytics and Finance Division; (e) Administrative Officer Level 4 to Senior Officer Level 1 in the Enterprise Systems Division; (f) Administrative Officers and Advisors Level 4 to Senior Officer Level 1 in the Fine Administration and Management area, Strategy and Compliance Group	(a) To investigate false statutory declarations regarding road policing and road safety camera offences; and (b) to perform statutory duties and associated functions for the administration and enforcement of revenue and recognised laws, including residency requirements, directly in relation to the administration of the following Acts: (i) <i>Betting Tax Act 2018</i> (Qld); (ii) <i>Building Boost Grant Act 2011</i> (Qld); (iii) <i>Duties Act 2001</i> (Qld); (iv) <i>First Home Owner Grant and Other Home Owner Grants Act 2000</i> (Qld); (v) <i>Land Tax Act 2010</i> (Qld); (vi) <i>Mineral Resources Act 1989</i> (Qld); (vii) <i>Payroll Tax Act 1971</i> (Qld); (viii) <i>Petroleum Act 1923</i> (Qld); (ix) <i>State Penalties Enforcement Act 1999</i> (Qld); (x) <i>Taxation Administration Act 2001</i> (Qld)
40	Revenue, WA	Any of the following:	To assist in the administration and enforcement of revenue laws (including, but not limited to, data matching, determining residency of persons and

Item	Agency	Employee	Purpose
		(a) Level 3 to 7 employee in the Payroll Tax, Duties, Land Tax and First Home Owner Grant Investigation teams; (b) Level 2 to 6 employee in the Analysis and Support and Business Intelligence Solutions teams; (c) Level 8 to Class 1 employee in Compliance and Operations Group 1 Management; (d) Level 3 to 6 employee in the Grants and Subsidies, Recovery, and Land Tax teams	facilitating the investigation of cases involving the evasion and avoidance of duties, taxes, grants and subsidies) directly in relation to the administration of the following Acts: (a) <i>Duties Act 2008</i> (WA); (b) <i>First Home Owner Grant Act 2000</i> (WA); (c) <i>Land Tax Assessment Act 2002</i> (WA); (d) <i>Pay-roll Tax Assessment Act 2002</i> (WA); (e) <i>Taxation Administration Act 2003</i> (WA)
41	Office of the Health Ombudsman, Queensland	Any of the following: (a) Administrative Officer Level 3 to Senior Officer Level 1 in the Investigations Division; (b) Executive Director Investigations in the Investigations Division; (c) Administrative Officer Level 4 to Senior Officer Level 1 in the Monitoring and Compliance Team in the Investigations Division; (d) Administrative Officer Level 4 in the Immediate Action Team; (e) Administrative Officer Level 6 to Senior Officer Level 1 in the Immediate Action Team; (f) Administrative Officer Level 3 and Administrative Officer Level 4 in the Legal Services Division; (g) Professional Officer Level 4 to Professional Officer Level 6 in the Legal Services Division	To perform statutory duties and associated functions directly in relation to the administration of the <i>Health Ombudsman Act 2013</i> (Qld)
42	Professional Services Review Agency (PSR)	Staff in the Case Management Unit: (a) APS 5 Legal Case Manager; (b) APS 6 Legal Case Manager; (c) Executive Level 1 Senior Legal Officer; (d) Executive Level 2 Principal Legal Officer;	(a) To perform statutory duties and associated functions, to ensure the protection of public revenue and the integrity of payments directly in relation to administration of the below Acts: (i) <i>Health Insurance Act 1973</i> (Cth);

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		(e) Executive Level 2 Special Counsel; (f) SES Band 1 General Counsel; (g) SES Band 1 Executive Officer	(ii) <i>National Health Act 1953</i> (Cth); (iii) <i>Dental Benefits Act 2008</i> (Cth); (b) to ensure the integrity of payments under the Medicare Benefits Scheme, the Dental Benefits Scheme and the Pharmaceutical Benefits Scheme
43	Queensland Police Service	An officer or staff member who: (a) has responsibility to perform statutory duties and associated functions on behalf of the Queensland Police Service; or (b) is engaged in investigations involving persons who have been reported as missing	(a) To perform statutory duties and associated functions directly in relation to administration of the following Acts: (i) <i>Coroners Act 2003</i> (Qld); (ii) <i>Crimes Act 1914</i> (Cth); (iii) <i>Criminal Code Act 1899</i> (Qld); (iv) <i>Penalties and Sentences Act 1992</i> (Qld); (v) <i>Police Powers and Responsibilities Act 2000</i> (Qld); (b) to assist in the administration and enforcement of laws relating to a criminal law, the prevention of a crime or the detection of criminal conduct; (c) to conduct missing persons investigations
44	Revenue New South Wales	An employee of Revenue NSW with the responsibility to perform statutory functions and associated duties on behalf of Revenue New South Wales	(a) To verify immigration status and residence status for assessment of eligibility and entitlements directly in relation to the administration of <i>First Home Owner Grant and Shared Equity Act 2000</i> (NSW); (b) to assist in the investigation and determination of liabilities directly in relation to administration of the following Acts: (i) <i>Betting Tax Act 2001</i> (NSW); (ii) <i>Duties Act 1997</i> (NSW); (iii) <i>Emergency Services Levy Act 2017</i> (NSW); (iv) <i>Gaming Machine Tax Act 2001</i> (NSW); (v) <i>Health Insurance Levies Act 1982</i> (NSW); (vi) <i>Land Tax Act 1956</i> (NSW);

Item	Agency	Employee	Purpose
			(vii) <i>Land Tax Management Act 1956</i> (NSW); (viii) <i>Mining Act 1992</i> (NSW); (ix) <i>Offshore Minerals Act 1999</i> (NSW); (x) <i>Parking Space Levy Act 2009</i> (NSW); (xi) <i>Payroll Tax Act 2007</i> (NSW); (xii) <i>Petroleum (Offshore) Act 1982</i> (NSW); (xiii) <i>Petroleum (Onshore) Act 1991</i> (NSW); (xiv) <i>Point to Point Transport (Taxis and Hire Vehicles) Act 2016</i> (NSW); (xv) <i>State Debt Recovery Act 2018</i> (NSW); (xvi) <i>Taxation Administration Act 1996</i> (NSW); (xvii) <i>Unclaimed Money Act 1995</i> (NSW); (c) to assist in the investigation, prosecution and enforcement of fines, fees and penalties (including, but not limited to, the location of individuals falsely nominated for demerit point driving offences) directly in relation to the following Acts: (i) <i>Fines Act 1996</i> (NSW); (ii) <i>Health Services Act 1997</i> (NSW); (iii) <i>Road Transport Act 2013</i> (NSW)
45	Revenue SA, Department of Treasury and Finance (Revenue SA)	An employee with responsibility to perform statutory duties and associated functions on behalf of Revenue SA	To perform statutory duties and associated functions for the administration and enforcement of revenue and recognised laws, including residency requirements, directly in relation to the following Acts: (a) <i>First Home and Housing Construction Grants Act 2000</i> (SA); (b) <i>Taxation Administration Act 1996</i> (SA)
46	Services Australia	Any of the following:	(a) To verify immigration status and residence status for determination of eligibility and entitlements for social security and family assistance benefits; or

Item	Agency	Employee	Purpose
		(a) APS 4 and above, with responsibility for verifying immigration status and movement information in relation to social security and family assistance benefit reviews; (b) APS 4 and above, with responsibility for customer service recovery action, in relation to social security and family assistance benefits; (c) APS 4 and above, with responsibility for policy and procedural support for staff processing social security and family assistance claims and entitlement reviews; (d) APS 4 and above, with responsibility for identification, investigation and prevention of incorrect payments and fraud; (e) APS 3 and above, with responsibility for identification, investigation and prevention of incorrect payments; (f) APS 2 and above, with responsibility for verifying movements and residence information for the purpose of eligibility and ongoing entitlement for social security and family assistance benefits; (g) APS 2 and above, with responsibility for verifying movements and residence information for the purpose of eligibility and ongoing entitlement under reciprocal international social security agreements; (h) APS 4 and above, with responsibility for customer service recovery action in relation to child support benefits;	(b) to identify and prevent overpayments, and to ensure accuracy of claimant data; or (c) to give effect to Australia's international obligations in relation to reciprocal social security agreements; or (d) to verify immigration status and residence status to determine eligibility assessments for child support; or (e) to give effect to Australia's international obligations in relation to reciprocal enforcement of child support; or (f) to enforce child support liabilities; or (g) to identify and prevent incorrect payments under the Medicare program including the Medicare Benefits Schedule, Child Dental Benefits Schedule, Pharmaceutical Benefits Scheme and Continence Aids Payment Scheme; or (h) to ensure accuracy of claimant data for the Medicare program and the Pharmaceutical Benefits Scheme; or (i) to support the investigation of offences against programs administered by Services Australia directly in relation to the following Acts: (i) <i>A New Tax System (Family Assistance) Act 1999</i> (Cth); (ii) <i>A New Tax System (Family Assistance) (Administration) Act 1999</i> (Cth); (iii) <i>Australian Hearing Services Act 1991</i> (Cth); (iv) <i>Child Support (Assessment) Act 1989</i> (Cth); (v) <i>Child Support (Registration and Collection) Act 1988</i> (Cth); (vi) <i>Dental Benefits Act 2008</i> (Cth); (vii) <i>Disability Services and Inclusion (Consequential Amendments and Transitional Provisions) Act 2023</i> (Cth); (viii) <i>Farm Household Support Act 2014</i> (Cth);

Item	Agency	Employee	Purpose
		(i) APS 3 and above with responsibility for identification, investigation and enforcement of child support liabilities; (j) APS 4 and above with responsibility for identification and investigation of incorrect payments and investigation of offences against Medicare programs; (k) APS 4 and above with responsibility for customer service recovery action in relation to Medicare benefits	(ix) <i>Health and Other Services (Compensation) Act 1995</i> (Cth); (x) <i>Health Insurance Act 1973</i> (Cth); (xi) <i>National Health Act 1953</i> (Cth); (xii) <i>Paid Parental Leave Act 2010</i> (Cth); (xiii) <i>Social Security (Administration) Act 1999</i> (Cth); (xiv) <i>Student Assistance Act 1973</i> (Cth); (xv) <i>Social Security Act 1991</i> (Cth); (xvi) <i>Social Security (International Agreements) Act 1999</i> (Cth)
47	South Australia Police (SA Police)	An officer or member who: (a) has responsibility to perform statutory duties and associated functions on behalf of SA Police; (b) is engaged in investigations involving persons who have been reported as missing	(a) To perform statutory duties and associated functions directly in relation to the following Acts: (i) <i>Coroners Act 2003</i> (SA); (ii) <i>Crimes Act 1914</i> (Cth); (iii) <i>Criminal Law Consolidation Act 1935</i> (SA); (iv) <i>Sentencing Act 2017</i> (SA); or (b) to assist in the administration and enforcement of laws directly relating to a criminal law, the prevention of a crime or the detection of criminal conduct; or (c) to conduct missing persons investigations
48	Sport Integrity Australia	Any of the following: (a) an employee of Sport Integrity Australia who performs statutory duties under the <i>Sports Integrity Act 2020</i> (Cth) to assist with the investigation and prevention of threats to sports integrity; (b) an employee who coordinates a national approach to matters relating to sports integrity	To fulfil statutory duties and associated functions to prevent, investigate and address threats to sports integrity and to coordinate a national approach to matters relating to sports integrity in Australia and directly in relation to administering the <i>Sport Integrity Australia Act 2020</i> (Cth).
49	State Revenue Office, Victoria (SRO Vic)	Any of the following: (a) Area Manager; (b) Program Manager;	To perform statutory duties directly in relation to the performance of one or more of the functions of legislation

Item	Agency	Employee	Purpose
		(c) Principal Investigator; (d) Senior Investigator; (e) Investigator; (f) Revenue Reporting Analyst; (g) Strategic Liaison Officer; (h) Senior Analyst; (i) Senior Administration Officer	for which the Commissioner of State Revenue Victoria has the power of administration, under the following Acts: (a) <i>Back to Work Act 2015</i> (Vic); (b) <i>Duties Act 2000</i> (Vic); (c) <i>Fire Services Property Levy Act 2012</i> (Vic); (d) <i>First Home Owner Grant and Home Buyer Schemes Act 2000</i> (Vic); (e) <i>Land Tax Act 2005</i> (Vic); (f) <i>Payroll Tax Act 2007</i> (Vic); (g) <i>Taxation Administration Act 1997</i> (Vic); (h) <i>Taxation (Reciprocal Powers) Act 1987</i> (Vic); (i) <i>Unclaimed Money Act 2008</i> (Vic)
50	Tasmania Police	An officer or special constable who: (a) has responsibility to perform statutory duties and associated functions on behalf of the Tasmania Police; (b) is engaged in investigations involving persons who have been reported as missing	(a) To perform statutory duties and associated functions directly in relation to the following Acts: (i) <i>Coroners Act 1995</i> (Tas); (ii) <i>Crimes Act 1914</i> (Cth); (iii) <i>Criminal Code Act 1924</i> (Tas); (iv) <i>Police Service Act 2003</i> (Tas); (v) <i>Sentencing Act 1997</i> (Tas); or (b) to assist in the administration and enforcement of laws directly relating to a criminal law, the prevention of a crime or the detection of criminal conduct; or (c) to conduct missing persons investigations
51	Tax Practitioners Board	An employee of the Tax Practitioners Board with responsibility to perform statutory duties and associated functions under the <i>Tax Agent Services Act 2009</i> (Cth)	To perform statutory duties directly in relation to the performance of one or more of the functions of legislation for which the Tax Practitioners Board has the power of administration and directly relating to the <i>Tax Agent Services Act 2009</i> (Cth)
52	Victoria Police	An officer or employee who:	(a) To perform statutory duties and associated functions directly in relation to the following Acts: (i) <i>Coroners Act 2008</i> (Vic);

Item	Agency	Employee	Purpose
		(a) has responsibility to perform statutory duties and associated functions on behalf of Victoria Police; or (b) is engaged in investigations involving persons who have been reported as missing	(ii) <i>Crimes Act 1914</i> (Cth); (iii) <i>Crimes Act 1958</i> (Vic); (iv) <i>Sentencing Act 1991</i> (Vic); (v) <i>Victoria Police Act 2013</i> (Vic); or (b) to assist in the administration and enforcement of laws directly relating to a criminal law, the prevention of a crime or the detection of criminal conduct; or (c) to conduct missing persons investigations
53	Western Australia Police Force (WA Police Force)	An officer or employee who: (a) has responsibility to perform statutory duties and associated functions on behalf of WA Police Force; or (b) is engaged in investigations involving persons who have been reported as missing; or (c) works in the Personnel Security Vetting Unit	(a) To perform statutory duties and associated functions directly in relation to the following Acts: (i) <i>Coroners Act 1996</i> (WA); (ii) <i>Crimes Act 1914</i> (Cth); (iii) <i>Criminal Code Act Compilation Act 1913</i> (WA); (iv) <i>Criminal Investigation Act 2006</i> (WA); (v) <i>Criminal Investigation (Identifying People) Act 2002</i> (WA); (vi) <i>Misuse of Drugs Act 1981</i> (WA); (vii) <i>Police Act 1892</i> (WA); (viii) <i>Sentencing Act 1995</i> (WA); or (b) to assist in the administration and enforcement of laws directly relating to a criminal law, the prevention of a crime or the detection of criminal conduct; and (c) to conduct missing persons investigations; and (d) to conduct security vetting on prospective employees of the WA Police Force

Schedule 3—Repeals

Migration (Access to Movement Records) Instrument (LIN 23/015) 2023

1 The whole of the instrument

Repeal the instrument.